

SENATE No. 1042

The Commonwealth of Massachusetts

PRESENTED BY:

Nick Collins

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to life saving treatment.

PETITION OF:

NAME:

Nick Collins

DISTRICT/ADDRESS:

First Suffolk

SENATE No. 1042

By Mr. Collins, a petition (accompanied by bill, Senate, No. 1042) of Nick Collins for legislation to require that patients admitted to a medical facility for suffering an overdose receive an evaluation by a licensed social worker before discharge. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to life saving treatment.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Notwithstanding any special or General law to the contrary:

2 If a petition for civil commitment of a patient defined by Massachusetts General Law Ch.
3 123, Section 35 is made while the individual is in a hospital setting, the individual and their
4 independent counsel may participate in the subsequent court hearing remotely; a court ordered
5 evaluation pursuant to this section may be performed remotely; and no discharge of a patient
6 who has suffered an overdose or who required the administration of an opioid antagonist shall be
7 discharged from a medical facility until an evaluation by a licensed social worker has taken place
8 and a meeting with a recovery coach and navigator has taken place; the discharge of a patient
9 from a public health facility licensed under said section shall not be granted unless approved by
10 the judge who issued the order for civil commitment;